

110	Morales vs. Knowles Security, Inc. 2023-01330854	Motion for Approval of Class Settlement <u>Motion to Seal</u> Defendant Knowles Security, Inc.'s Motion for Order Sealing the Confidential Declaration of Joe Zuniga Filed in Support of Motion for Preliminary Approval of Class Settlement is GRANTED. Defendant seeks an order to permanently seal the confidential Declaration of Joe Zuniga and attached exhibits submitted by Defendant in support of the pending Motion for Preliminary Approval of Class Action and PAGA Settlement. Mr. Zuniga is Defendant's Chief Executive Officer and owner. Mr. Zuniga's declaration and attached exhibits contain detailed confidential information regarding Defendant's financial condition, including information about Defendant's taxes, operational costs, cash flow, operating funds, and associated liabilities. Defendant has met the procedural requirements and established the criteria set forth in California Rules of Court, rules 2.550(d)(1)-(5) for sealing this material. The Court expressly finds that for these materials, the facts establish: (1) Defendant has an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exists to achieve the overriding interest. (CRC 2.550(d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal. App. 4th 974, 988.) These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. (See, <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178, 1217-18; <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 104.) Defendant has met its burden by demonstrating that Mr. Zuniga's declaration and attached exhibits contains confidential and proprietary financial information, and that public disclosure of this confidential financial information poses a legitimate risk of harm to Defendant's business interests, business relationships, and continued operation. Therefore, the Court orders the Declaration of Joe Zuniga and Exhibits Filed in Support of Motion for Preliminary Approval of
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Class Settlement (ROA 131) to be permanently sealed.

Defendant is ordered to give notice of this ruling.

Motion for Preliminary Approval

The Court has reviewed the supplemental materials submitted by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Alexis Morales's Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED.

This is a putative wage-and-hour class action and PAGA matter. On June 9, 2023, Plaintiff Alexis Morales, as an individual and on behalf of all others similarly situated ("Plaintiff"), filed a Class Action Complaint against Defendant Knowles Security, Inc. ("Defendant"). The Complaint asserts seven causes of action for various wage-and-hour violations of the Labor Code and violations of the Unfair Competition Law. On July 31, 2023, as a matter of right, Plaintiff filed the operative First Amended Class and Representative Action Complaint ("FAC") adding a PAGA cause of action.

On September 6, 2024, Plaintiff filed the current Motion for Preliminary Approval of Class Action and PAGA Settlement, and submitted the Stipulation of Class and PAGA Settlement for the Court's review. The Motion seeks preliminary approval of the parties' proposed settlement for the non-reversionary Gross Settlement Amount of \$450,000.00.

After the Court expressed certain concerns at the February 28, 2025 hearing, the parties prepared the amended Stipulation of Class and PAGA Settlement. Based on a review of the Settlement Agreement, the Court finds the Settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

Within five (5) court days, Class Counsel must submit a revised Proposed Order for the Court's signature with the following corrections:

- Remove attorney information from caption page;
- Provide Gross Settlement Amount in Paragraph 1;
- Complete the implementation schedule in Paragraph 13 by providing actual dates for each item

The Motion for Final Approval will be heard on July 31, 2025, at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval are due no later than sixteen (16) court days prior to the hearing date. If Class Counsel

		cannot meet this deadline, then counsel must request a continuance of the hearing. Failure to do so may result in the issuance of an OSC re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records, or a summary of time spent on the substantive tasks, to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Plaintiff's counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the Gross Settlement Amount absent unique circumstances. As a result, in the supplemental filing, Class Counsel should address whether any such unique circumstances exist in this litigation. At the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award, and addressing factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. Am. Residential Servs., LLC</i> (209) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.
111	Akoyan vs. TR Accountants 2022-01292163	Motion for Approval of Class Settlement Plaintiff David Akoyan's Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submission of a copy of Plaintiff's individual settlement agreement, if any. This is a putative wage-and-hour class action and PAGA matter. On November 17, 2022, Plaintiff David Akoyan, on behalf of himself and all employees similarly situated ("Plaintiff"), filed a Class Action Complaint against Defendant TR Advocates, LLC ("Defendant"). The Complaint asserts nine causes of action for various wage-and-hour violations of the Labor Code and violations of the Unfair Competition Law. On March 20, 2023, pursuant to Stipulation and Order, Plaintiff filed the First Amended Complaint in order to correctly identify the Defendant as TR Accountants dba Tax Relief